

ORDINANCE NO. A 33
TOWN OF DECATUR, MISSISSIPPI
RESOLUTION TO ENACT ORDINANCE FOR THE
CONTROL OF NUISANCES

WHEREAS, it is the desire of the Mayor and Board of Aldermen of the Town of Decatur, Mississippi to adopt in all respects the nuisance ordinance;

NOW, THEREFORE, BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE TOWN OF DECATUR, MISSISSIPPI that an Ordinance be enacted as hereinafter set forth to be in full force and effect as provided by law;

NUISANCES

SECTION 1. DEFINITION. For the purpose of this chapter, the word “nuisance” is hereby defined as any person doing an unlawful act, or omitting to perform a duty, or suffering or permitting any condition or thing to be or exist, which act, omission, condition or thing either:

- a) Injures or endangers the comfort, repose, health or safety of others; or
- b) Offends decency; or
- c) Is offensive to the senses; or
- d) Unlawfully interferes with, obstructs or tends to obstruct or renders dangerous for passage any public or private street, highway, sidewalk, stream, ditch or drainage; or
- e) In any way renders other persons insecure in life or the use of property; or
- f) Essentially interferes with the comfortable enjoyment of life and property, or tends to depreciate the value of the property of others.

SECTION 2. ILLUSTRATIVE ENUMERATION. The maintaining, using, placing, depositing¹ leaving or permitting to be or remain on any public or private property of any of the following items, conditions or actions are hereby declared to be and constitute a nuisance; provided, however, this enumeration shall not be deemed or construed to be conclusive, limiting or restrictive:

- a) Noxious weeds and other rank vegetation.
- b) Accumulation of rubbish, trash, refuse, junk and other abandoned materials, metals, lumber or other things.
- c) Any condition which provides harborage for rats, mice, snakes and other vermin.

- d) Any building or other structure which is in such a dilapidated condition that it is unfit for human habitation, or kept in such an unsanitary condition that it is a menace to the health of people residing in the vicinity thereof, or presents a more than ordinarily dangerous fire hazard in the vicinity where it is located.
- e) All unnecessary or unauthorized noises and annoying vibrations, including animal noises.
- f) All disagreeable or obnoxious odors and stenches, as well as the conditions, substances, or other causes which give rise to the emission or generation of such odors and stenches.
- g) The carcasses of animals or fowl not disposed of within a reasonable time after death.
- h) The pollution of any public well or cistern, stream, lake, Canal or body of water by sewage, dead animals, creamery, industrial wastes or other substances.
- i) Any building, structure or other place or location where any activity which is in violation of local, state or federal law is conducted, performed or maintained.
- j) Any accumulation of stagnant water permitted or maintained on any lot or piece of ground.
- k) Dense smoke, noxious fumes, gas, soot or cinders, in unreasonable quantities.

SECTION 3. PROHIBITED. It shall be unlawful for any person to cause, permit, maintain or allow the creation or maintenance of a nuisance.

SECTION 4. NOTICE TO ABATE. Whenever a nuisance is found to exist within the town or within the town's extraterritorial jurisdiction, the Town Clerk or some other duly designated officer of the town shall give five (5) days' written notice to the owner or occupant of the property upon which such nuisance exists or upon the person causing or maintaining the nuisance.

SECTION 5. CONTENTS OF NOTICE. The notice to abate a nuisance issued under the provisions of this chapter shall contain:

- a) An order to abate nuisance or to request a hearing within a stated time, which shall be reasonable under the circumstances.
- b) The location of the nuisance, if the same is stationary.
- c) A description of what constitutes the nuisance.
- d) A statement of acts necessary to abate the nuisance.
- e) A statement that if the nuisance is not abated as directed and no request for hearing is made within the prescribed time, the town will abate such nuisance and assess the costs thereof against such person.

SECTION 6. SERVICE OF NOTICE. The notice to abate a nuisance shall be served as any other legal process may be served pursuant to law.

SECTION 7. ABATEMENT BY TOWN. Upon the failure of the person upon whom notice to abate a nuisance was served pursuant to the provisions of this chapter to abate the same, a duly designated officer of the town shall proceed to abate such nuisance and shall prepare a statement of costs incurred in the abatement thereof.

SECTION 8. TOWN'S COST DECLARED LIEN. Any and all costs incurred by the Town in the abatement of a nuisance under the provisions of this chapter shall constitute a lien against the property upon which such nuisance existed, which lien shall be filed, proven and collected as provided for by law. Such lien shall be notice to all persons from the time of its recording, and shall bear interest at the legal rate there-after until satisfied.

SECTION 9. This ordinance shall be in effect on the 1st day of May, 1997.

The Motion having received the affirmative vote of all Aldermen present, the Mayor declared the Motion carried and the Resolution adopted this the 7th day of April, 1987.